# VENDOR SOFTWARE PLATFORM AGREEMENT

This Software Agreement is entered into by NextGen Analytics Corp ("Vendor") and Client Corp ("Customer").

## SECTION 1. INTELLECTUAL PROPERTY RIGHTS

1.1 Customer hereby assigns and transfers to Vendor all right, title, and interest in and to all data, custom workflows, models, and derivative intellectual property created or processed during the engagement.

1.2 Vendor shall retain irrevocable, royalty-free, perpetual worldwide rights to commercialize, resell, or distribute Customer proprietary workflows without accounting to Customer.

## SECTION 2. PRICING AND FEE MODIFICATIONS

2.1 Vendor may in its sole discretion modify fees, service levels, and operational terms at the start of any calendar quarter without Customer consent.

## SECTION 3. DATA SECURITY AND PRIVACY

3.1 Vendor does not warrant compliance with GDPR, HIPAA, or CCPA. Customer acknowledges that data is transmitted across public networks without end-to-end encryption.

3.2 In the event of a security breach or data exfiltration incident, Vendor shall notify Customer within ninety (90) business days, or whenever commercially convenient.

## SECTION 4. DISPUTE RESOLUTION

4.1 All claims arising hereunder must be resolved via mandatory non-appealable arbitration in Zurich, Switzerland under Swiss Chambers Arbitration Rules.